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File No.: EXP202313529

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On September 13, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data.

The complaint is directed against D.G. DE LA GUARDIA CIVIL with NIF S2816003D (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant, a corporal of the Civil Guard, states that on July 14, 2023, the instructor of his disciplinary file (**FILE.1) sent an email to his entire unit (composed of 22 people) revealing the initiation of said disciplinary file.

He believes that the principle of confidentiality may have been violated.

He provides a copy of the aforementioned email.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on October 3, 2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 3, 2023, as evidenced by the acknowledgment of receipt in the file.

On October 20, 2023, this Agency received a written response from the respondent indicating that "although the Group-Wise email was indeed sent as stated by the complainant, they inform us that when the email arrived at the destination Unit, the Second Chief of the Intervention of Arms and Explosives of the Command of Madrid verified that the email was closed and moved it to a folder to which only he has access, being also the one who notified the content of it to the complainant. They also state that there is no record of anyone opening or reading the message; however, they inform that for future situations they are already aware of the need to encrypt messages.

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In light of the above, we understand that no violation of the rights of the interested party has occurred, although we agree on the importance of observing the instructions given by this DPD in the attached circular, which we reiterate to the Command."

THIRD: On December 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 23, 2024, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent has submitted the following allegations:

"In relation to the provisions of the First Section of the HEADING FACTS of the aforementioned initiation agreement, in which it is stated that ...the instructor of his disciplinary file (OIL025/23) sent an email to his entire destination unit, it is reported that said citation was sent to the official and internal email address of the Intervention of Arms and Explosives of the Command of Madrid, the unit to which

the interested party was assigned, indicating that said notification was sent through the usual channel provided for this type of communications, emphasizing that said email address is enabled for official use of the unit itself, and not by its members, with the management of it being under the responsibility of the unit chief or a person authorized by him designated for this purpose.

On the other hand, regarding the content of the notification itself that is the subject of the complaint, it is noted that the data contained therein do not constitute specially protected data under Articles 9 and 10 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data, nor under the same articles of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights.

Finally, it is important to note that, in any case, the processing of the procedure that is the subject of the complaint has been subject to the confidentiality obligation provided for in Article 5 of Organic Law 3/2018, a circumstance that is evidenced by the triple confidentiality notice contained in the notification referred to by the interested party.”

SIXTH: On May 1, 2024, a resolution proposal was made, proposing the following:

That the Director of the Spanish Agency for the Protection of Data declare that D.G. DE LA GUARDIA CIVIL, with NIF S2816003D, has infringed the provisions of the

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Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

That the Director of the Spanish Agency for Data Protection orders D.G. OF THE CIVIL GUARD, with NIF S2816003D, to comply with the provisions of Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to demonstrate that it has adopted measures that respect the principle of integrity and confidentiality established in Article 5.1 f) of the GDPR, ensuring an adequate level of security for personal data, to prevent personal data from being sent again via email to third parties, such as colleagues, thereby avoiding further violations of the principle of integrity and confidentiality of personal data, as required by Article 5.1 f) of the GDPR. Furthermore, within one month from the notification of the resolution, the AEPD must be informed of the measures adopted by the CIVIL GUARD to prevent such incidents from recurring, in accordance with Article 32 of the GDPR.

In accordance with Article 14 of Law 39/2015 of October 1 on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), the party being claimed is obliged to communicate electronically with the Administration, thus the notification of the proposed resolution was validly carried out by electronic means.

On May 3, 2024, the party being claimed accessed the proposed resolution through the single enabled electronic address (DEHu), thus the notification of the proposed resolution of this sanctioning procedure was validly carried out, against which no allegations have been received.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: On July 14, 2023, the instructor of the disciplinary file (**FILE.1) sent an email to an official and internal email address of the Intervention of Arms and Explosives of the Madrid Command.

SECOND: The party being claimed does not acknowledge the indicated infringements, asserting that the processing of the procedure subject to the claim has at all times respected the duty of confidentiality, as the email address to which the communication was sent is enabled for official use by the unit itself, and not by its members, with the management of the same being under the responsibility of the unit head or a person authorized by them designated for this purpose.

LEGAL GROUNDS

I

Competence
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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, the claimant, a corporal of the Civil Guard, states that on July 14, 2023, the instructor of their disciplinary file sent an email to an electronic address, revealing in that communication the initiation of the disciplinary file in which the claimant is involved, which would constitute a serious violation of the right to data protection and privacy.

The party being claimed carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

III

Response of the Party Being Claimed

The party being claimed does not acknowledge the indicated infringements, asserting that the processing of the procedure subject to the claim has at all times respected the duty of confidentiality, as the email address to which the communication was sent is enabled for official use by the unit itself, and not by its members, with the management of the same being under the responsibility of the unit head or a person authorized by them designated for this purpose.

The AEPD has not been able to reliably determine who has had access to said email, so as these facts cannot be substantiated, it is deemed appropriate to proceed with the filing of this procedure.

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Therefore, after becoming aware of these facts, the Director of the Spanish Agency for Data Protection **RESOLVES:**

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the party being complained against.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the

Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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